

by defendant with notice of this ruling.

16. 9:00 AM CASE NUMBER: C24-03533
CASE NAME: CHARLES KASPER VS. KARINA KASPER
***HEARING ON MOTION IN RE: TO DECLARE PLAINTIFF A VEXATIOUS LITIGANT**
FILED BY: KASPER, KARINA MARIE
TENTATIVE RULING:

This is Karina Kasper's motion to declare plaintiff a vexatious litigant. The moving papers do not show behavior that meets the standards of Code of Civil Procedure Section 391(b)(1),(2),(4) or (5). Nor has there been sufficient evidence yet of "unmeritorious motions, pleadings or other papers" or "conduct [of] unnecessary discovery or ...other tactics that are frivolous or solely intended to cause unnecessary delay" to meet the standard of Section 391(b)(3). There is evidence of mistakes made by a self-represented litigant, but that does merit a finding of "vexatious litigant." The motion is denied without prejudice to renewal upon an appropriate showing at an appropriate time.

17. 9:00 AM CASE NUMBER: C24-03533
CASE NAME: CHARLES KASPER VS. KARINA KASPER
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BLUE GARDEN CARE
***TENTATIVE RULING**

This is Blue Garden Care's demurrer to the complaint. It is unopposed and well taken.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion